

LEGAL BRIEF – PROPERTY DISPUTE

Case Title: Ancestral Property Partition Dispute – South Delhi

Jurisdiction: South Delhi District Courts, Delhi

Nature of Dispute: Civil – Partition of Ancestral Property

Client Details (Plaintiff):

Name: _____

Address: _____

Contact Number: _____

Opposite Parties (Defendants):

1. _____

2. _____

Relationship to Plaintiff: Family members (co-parceners)

Property Details:

Location: South Delhi

Type: Residential Ancestral Property

Ownership Status: Undivided ancestral property inherited from forefathers

Approximate Area/Value: _____

Background of the Dispute:

The property in question is an ancestral property situated in South Delhi. The property was originally owned by the grandfather/great-grandfather of the parties. After his demise, the property devolved upon his legal heirs as per Hindu Succession laws. Despite repeated requests, the defendants have refused to amicably partition the property or recognize the lawful share of the plaintiff, leading to the present dispute.

Cause of Action:

The cause of action arose when the defendants denied the plaintiff's rightful share in the ancestral property and attempted to assert exclusive ownership and control. The cause of action is continuing as the property remains undivided.

Relief Sought:

- Partition of the ancestral property by metes and bounds.
- Declaration of the plaintiff's lawful share.
- Permanent injunction restraining the defendants from selling or creating third-party interest.
- Any other relief deemed fit by the Hon'ble Court.

Documents Available:

- Property title documents
- Family tree / genealogy records
- Death certificates of previous owners
- Identity and address proof of parties

Remarks for Advocate:

This document is a preliminary brief intended to assist the advocate in understanding the nature of the dispute. Detailed facts, documents, and legal strategy may be refined after consultation.